

THE UNITED STATES 2016

Table of Contents

_Toc494360655

1. Overview of the system	1
2. Unemployment insurance	2
3. Unemployment assistance	4
4. Social assistance	5
5. Housing benefits for rented accommodation	9
6. Family Benefits.....	12
7. Childcare for pre-school children	14
8. Employment-conditional benefits.....	20
9. Lone-parent benefits	20
10. Tax system	21
11. Part-time work.....	24
12. Policy developments	25

1. Overview of the system

Generally, unemployed persons who meet certain eligibility requirements can receive unemployment insurance for a maximum of 26 weeks. In addition, there are other programs that assist the unemployed and/or individuals who have low incomes. Some programs have specific provisions for low income families. The most important of these programs is the Supplemental Nutrition Assistance Program (SNAP), formerly known as food stamps^[1], and Temporary Assistance for Needy Families (TANF) which are granted to families in need. Responsibility for administration of SNAP is shared, with the Federal government paying for the benefit costs and setting broad rules and the States directly administering the program. Responsibility for TANF belongs to the individual States. An Earned Income Tax Credit is available to poor working families. The tax unit is the individual, but couples have the option to be taxed jointly. Tax and benefit systems vary from State to State. The State of Michigan is used to represent a typical manufacturing region. Michigan TANF and Unemployment Insurance benefits are somewhat above the average for all States.

1.1. Average worker wage (AW¹)

The national currency is the dollar (USD). In 2016, the average worker earned USD 52,543 (Secretariat estimate).

2. Unemployment insurance

The US Department of Labor oversees the system, but each State administers its own programme. Eligibility conditions differ from State to State, as do maximum benefit levels. Generally, all States require that UI recipients be able to work and available for work. All states also require that UI recipients be actively seeking work.

Program name in local language		Unemployment Insurance
Insurance is voluntary(V) or compulsory(C) for employees		C
Employment record (E) and contribution (C) conditions		E: 20 weeks (plus minimum earnings requirement)
Waiting period (weeks)		Waiting week not required
Maximum duration (weeks)		20 weeks (approx. 4.6 months)
Upgrading mechanism of the benefit		...
Calculation of unemployment insurance benefit:	initial benefit as % of calculation base	4.1%
	benefit at the end of legal entitlement period in % of calculation base	4.1%
	Calculation base	Gross (high quarter earnings)
	Permitted employment and disregards when receiving unemployment insurance benefit	gross earnings < benefit amount: 40% benefit withdrawal rate; gross earnings > benefit: earnings above benefit subtracted from 1.6*benefit; gross earnings >1.6*benefit amount: benefit fully withdrawn
Benefit provision (eligibility (E), generosity (G)) varies with	Age	n.a.
	family situation	G: + lump-sum for each dependent for up to 5 dependents
	contract type	n.a
	Other	n.a

¹ AW refers to the Average Wage estimated by the Centre for Tax Policy and Administration (<http://www.oecd.org/ctp/>). For more information on methodology see Taxing Wages 2007-2008.OECD, 2007, part 5, sections 2 and 3.

2.1 Conditions for receipt

2.1.1 Employment conditions

To qualify for the minimum weekly benefit amount (WBA), wages generally must equal 11/2 X the high quarter wages (HQP) in the base period (BP), or in the alternative BP wages must equal 20 times the state average weekly wage (AWW) and wages in 2 quarters. Minimum wages needed in the BP to qualify must be at least USD 4,744 in Michigan.

2.1.2 Contribution conditions

Employers pay 0.06 to 10.30 per cent of the first USD 9,000 for each covered employee in Michigan. The taxable wage of USD 9,500 decreases to USD 9,000 when the State's unemployment trust fund is equal to or greater than USD 2.5 billion. Tax rates among employers vary depending on their experience with respect to unemployment.

2.2 Calculation of benefit amount

2.2.1 Calculation of weekly benefit amount (WBA)

4.1 per cent of high quarter wages during the base period plus USD 6 for each dependent up to 5 dependants in Michigan. The benefit is bound by a minimum WBA of USD 117 (USD 117* 14 weeks = USD 1,638 per year), and a maximum of USD 362 per week (USD 7,240 per year), in Michigan.

2.2.2 Income and earnings disregards

The weekly benefit amount (WBA) will be reduced by 50 cents for every dollar earned during that week. Individuals earning more than 1.5 times their WBA are ineligible to receive benefits for that week.

2.3 Tax treatment of benefit

Unemployment insurance benefit income is subject to both Federal and State government income tax, but is exempted from social security taxes.

2.4 Benefit duration

All workers get regular state UI benefits for up to 20 weeks. If they are still unemployed after those benefits are exhausted, they will draw Extended Benefits if the state has triggered on Extended Benefits and is in an Extended Benefits period.

Duration of benefit in Michigan on 1st July 2016 was 20 weeks.

Reference date for all information is **July 1st 2016**

Country chapter for OECD series *Benefits and Wages* (www.oecd.org/els/social/workincentives)

Michigan's Unemployment Insurance Benefit Weeks

Source	Which States Qualify?	When Michigan Qualified	Funding Source	Maximum Number of Weeks	Amount of weekly benefit payable
Basic UI	All states	Ongoing	State taxes levied on employers	20	\$117 – \$362
Extended Benefits (EB)	Only states with a 13-week IUR (insured unemployment rate) of 5 percent or higher, and 120 percent above the IUR rate for the corresponding 13-week period in the two previous years	Most recent EB period began January 25, 2009 and ended February 18, 2012	Generally shared by state and federal gov'ts. On July 1, 2016, EB was not payable	13 or 50 percent of the total amount of regular state UI benefits, whichever is less	Same as under regular state UI benefits

Sources: U.S. Department of Labor

2.5 *Treatment of particular groups*

2.5.1 *Young persons*

None.

2.5.2 *Older worker*

None.

2.5.3 *Other groups, including disabled*

3. **Unemployment assistance**

There are no unemployment assistance schemes in the United States.

4. Social assistance

The Supplemental Nutrition Assistance Program (SNAP) is designed primarily to increase the food purchasing power of eligible low-income households to a point where they can buy a nutritionally adequate low-cost diet. This benefit scheme is classified – for the purposes of this publication – as social assistance.

Program name in local language		Supplemental Nutrition Assistance Program (SNAP)
Minimum age condition for social assistance receipt		No minimum age
Legal behavioural requirements	Registration as unemployed	No
	Participation in integration measures	No
	Active job search	No
	Work requirement	Michigan has a state-wide waiver on work requirements due to employment conditions
	Other conditions for receipt of benefit (including requirements for conditional cash transfers (CCT))	Need to have income and assets below specified thresholds or all household members must be receiving TANF, State General Assistance (GA), or SSI benefits
	Legal behavioural requirements for adult family members other than the benefit claimant	No
Determination of benefit levels		National
Uprating mechanism of the benefit		Adjusted annually based on changes in the cost of food
Other supplements to basic benefit (per family)		...
Means-test for social assistance	Earnings disregards	20% of earnings disregarded
	Benefit withdrawal rate with regard to earned income	Benefits are reduced by 30% of each additional dollar of net income, regardless of source.
	Assets included in means test?	Yes, for households where all members are not receiving TANF, GA, or SSI benefits
	Other benefits included in the means test	Any cash income, with a few exceptions, is counted as income.
Benefit provision (eligibility (E), generosity (G)) varies with	age	n.a.
	family situation	G: + rate increases less than proportional with household size
	over time	n.a.

	other	n.a.
--	-------	------

The Supplemental Security Income (SSI) Programme is a means-tested, federally administered income assistance programme which provides monthly cash payments in accordance with uniform, nation-wide eligibility requirements to needy aged, blind and disabled persons. Its operation is beyond the scope of this publication.

4.1 Conditions for receipt

Households who meet the income and asset tests described below and who meet other requirements (such as work registration and immigration rules, for example) are eligible for SNAP benefits. To be entitled to the benefit, households need to pass two income tests and an asset test (except for households where all members receive TANF, State General Assistance (GS), or SSI, who qualify automatically*):

- Basic (gross) monthly income must not exceed 130 percent of the poverty guidelines.
- Counted (net) monthly income must not exceed 100 percent of the poverty guideline.
- Countable assets cannot exceed USD 3250 for households with an elderly or disabled member, USD 2250 for other households

The net income guideline for a family of four in 2016 was USD 2021 per month.

* This automatic qualification is referred to as “categorical eligibility”. Households in which all members are receiving benefits through TANF, SSI, or GA are categorically eligible for SNAP. In addition, States are required to confer categorical eligibility on households receiving benefits or services that are at least 50 percent funded by TANF and have the option to confer categorical eligibility on households receiving benefits or services that are less than 50 percent funded by TANF. Many States have chosen to provide a TANF-funded noncash benefit to confer categorical eligibility on a broad number of households; this is known as broad-based categorical eligibility. As of August 2016, 42 States, including Michigan, had adopted broad-based categorical eligibility policies. Michigan applied categorical eligibility to any household with gross income less than or equal to 200 percent of poverty, with total assets less than or equal to USD 5,000 after excluding one vehicle and USD 15,000 combined value of the remaining vehicles.

4.2 Calculation of benefit amount

4.2.1 Calculation of gross benefit

Basic (gross) monthly income is the cash household income. Earned income before federal, state and local taxes, and social security contributions is counted, as is TANF, Social Security income, Supplemental Security Income benefits, child support payments, retirement pensions, and virtually all other unearned income. The Earned Income Tax Credit (EITC) (see Section 8) is not included in basic monthly income. Also excepted is unanticipated, irregular or infrequent income up to USD 30/quarter and income from tax refunds.

In Fiscal Year (FY) 2016, net monthly income was calculated by deducting the following from gross monthly income:

- a standard deduction for all SNAP households: USD 155*
- 20 per cent of gross earnings in recognition of taxes and work related expenses

- Court ordered child support payments made to non-household members (in 2015, States had the option of excluding such payments from gross income, but Michigan considered such payments as a deduction)
- Out-of-pocket medical expenses for elderly (aged 60 or more) or disabled household members in excess of USD 35
- Out-of-pocket dependent-care expenses necessary for work, school, or while seeking employment
- Excess shelter expense (rent or mortgage and utility expenses) if shelter expenses exceed 50 per cent of gross income less the above deductions, with a maximum of USD 504 for households with no elderly or disabled members.

* Beginning in FY 2003 the standard deduction is equal to 8.31 percent of the poverty level which varies by household size. In FY 2009, the minimum deduction was set at USD 144 and indexed by inflation. In FY 2016 households of 3 persons or less had a standard deduction of USD 155, 4-person households had a deduction equal to USD 168, 5-person households had a deduction equal to USD 197 and for 6 or more persons, the standard deduction was equal to USD 226.

As low-income families are expected to spend 30 per cent of their net income on food, the maximum benefit amounts are decreased by 30 per cent of counted (net) income.

A minimum monthly payment of USD 16 per month is applicable to one or two person households entitled to SNAP.

Maximum Monthly SNAP allotments are linked to family size (see table).

Maximum monthly SNAP allotments for FY 2015-2016 (in USD per month)			
Household size (persons)	Maximum allotments	Gross income eligibility limit	Net income eligibility limit
1	194	1276	981
2	357	1726	1328
3	511	2177	1675
4	649	2628	2021
5	771	3078	2368
6	925	3529	2715
7	1022	3980	3061
8	1169	4430	3408
Each additional person	+146	+451	+347

4.2.2 *Income and earnings disregards*

20 per cent of gross earnings are disregarded in SNAP income test in recognition of taxes and work related expense. SNAP benefits are not included in the means test of any other benefit.

4.3 Tax treatment of benefit

SNAP benefits are not taxable.

4.4 Benefit duration

Indefinitely, as long as eligibility conditions are met. SNAP benefits are issued monthly. Households are required to periodically submit information in order to be recertified for SNAP.

4.5 Treatment of particular groups

4.5.1 Young persons

Earnings before high school graduation are excluded from household countable income.

4.5.2 Older persons

Households with elderly (aged 60 and over) members: several program rules are relaxed for these households: they do not need to meet the basic (gross) income guideline; they may claim an excess shelter expense deduction greater than the maximum for other households; and they may have more countable assets than other households. Other administrative requirements are also relaxed.

4.5.3 Unemployed, healthy childless adults

Healthy, childless adults are subject to strict work requirements and time limits on their participation. They may receive benefits for only three months in any 36-month period unless they work, meet work requirements, are exempted under other provisions of law, or live in an area waived from work requirements due to insufficient jobs. In 2016, Michigan had a state-wide waiver due to employment conditions.

4.5.4 Immigrants

The 2002 Farm Bill restored SNAP eligibility to most legal immigrants provided they meet the income and asset eligibility requirements. All disabled legal immigrants had eligibility restored effective on October 1, 2002 and all legal immigrants in the country for at least five years had their eligibility restored on April 1, 2003. Legal immigrant children under age 18 had their eligibility restored on October 1, 2003. Those admitted as refugees, granted asylum, or given a stay of deportation are eligible without a waiting period, as are legal immigrants with a military connection.

Today, the only legal immigrant group who remains ineligible is nondisabled adults who have not yet been in the U.S. for at least five years, were not admitted as a refugee, and do not have a military connection. Unauthorized immigrants, visitors and temporary residents have never been eligible for SNAP benefits.

4.5.5 Other groups, including disabled

Households with disabled members: in 2016 these households had the same program rules as the elderly.

5. Housing benefits for rented accommodation

There is no provision in the U.S. for providing tax benefits directly to families to support rental payments. Homeownership, in contrast, is supported with tax benefits through deductibility of mortgage interest payments from a person's federally taxable income as well as credits for first-time home purchases in some years. The U.S. Tax Code indirectly supports rental housing that is affordable for lower income families through the Low Income Housing Tax Credit program. This program provides incentives for construction or rehabilitation of affordable rental housing by providing tax credits that reduce the income tax of investors who participate in the program.

Federal support for rental housing is accomplished primarily through annual appropriations of federal funds that are administered by the U.S. Department of Housing and Urban Development (HUD). HUD administers a wide variety of programs to provide affordable housing. The three major federal rental assistance programs are: public housing, project-based Section 8, and tenant-based Section 8 vouchers. Individual states are permitted to use funds from a limited number of other federal programs to provide rental housing assistance. For example, some states choose to allocate a portion of funding from the Temporary Assistance to Needy Families (TANF) program to operate rental subsidy programs, though these programs generally offer assistance that is short in duration and for limited numbers of specific target populations.

Regular housing benefits	Program name in local language		No general federal housing benefit
	Entitlement depends on	Household type/size	n.a.
		Income	n.a.
		Dwelling size	n.a.
		Geographic location	n.a.
		Actual rental cost	n.a.
	Description of regular housing benefit		Some support through the tax system via the Low Income Housing Tax program. Housing assistance for very low income households exists locally in some states.
	Uprating mechanism of the benefit		n.a.
Housing related support through other benefits			The means test for SNAP food subsidies allows the portion of shelter costs exceeding 50 percent of income, up to USD 504 ² per month, to be deducted from income.

5.1 Conditions for receipt

Housing assistance is not an entitlement. The three primary rental assistance programs provide for tenant eligibility based on income. Eligible income limits are based on a percentage of the local area median income (AMI): no greater than 80 percent of AMI for both public housing and project-based Section 8, and no greater than 50 percent of AMI for Section 8 vouchers, with adjustments for family size. In practice, the three rental assistance programs serve tenants with much lower incomes—primarily below

² https://www.everycrsreport.com/files/20161229_R42505_06252eef3754f8e789cc45f167b96fd1e2c618f1.pdf

30 percent of AMI. Local housing providers determine eligibility and admit tenants. Public housing authorities (PHAs) administer the public housing and tenant-based Section 8 programs, and private owners of assisted multifamily developments administer the project-based Section 8 program. Admission priorities are usually based on time on the local waiting list, but localities are allowed to establish local preferences (for example, for families transitioning to work from welfare, individuals with disabilities, and senior households).

The U.S. Department of Housing and Urban Development calculates median incomes for the purpose of determining eligibility for federal rental assistance programs. For fiscal year 2016, HUD estimated the national median income for a family of 4 at \$65,700,³ with 80 percent of the median being \$52,560 and 30 percent being \$19,722. Using this Chapter's example of the State of Michigan, the median income for a family of four was \$62,500 per year, with 80 percent being \$50,000 and 30 percent being \$18,750.

More information on the calculation of local area median income limits can be accessed at: <http://www.huduser.org/portal/datasets/il.html>

Together, the three major rental assistance programs assist approximately 4.5 million households, which is about one-fourth of those who meet the minimum requirements for assistance.

5.2 Calculation of benefit amount

Tenants are required to pay 30 percent of their income for rent. Tenants in the Section 8 voucher program are also allowed to pay more than that amount to access higher priced housing. Several types of income deductions reduce the required tenant rent contributions for families with a head of household who is elderly or disabled, medical expenses that exceed 3 percent of income per year, "reasonable" child care expenses, minors, and adults who are full-time students (or attending vocational training, disabled family members. In addition, child support, spousal support and income earned by minors are not counted toward income (with some limits) for purposes of calculating rent. In the public housing and tenant-based Section 8 programs, local PHAs are authorized to charge a "minimum rent" up to \$50 for families with very small incomes with hardship exceptions for some households.

In the public housing and project-based Section 8 programs, the benefit is the value of the housing provided. In the Section 8 voucher program, the subsidy makes up the difference between the tenant's rent contribution and a locally determined Fair Market Rent. Again, using this Chapter's example of the State of Michigan, the Fair Market Rent for the Detroit-Warren-Livonia metro area for a 2 bedroom apartment in 2016 was \$84663 per month. More information on calculation of Fair Market Rents can be accessed at: <http://www.huduser.org/portal/datasets/fmr.html>

5.3 Tax treatment of benefits

Housing assistance is not taxable.

5.4 Benefit duration

There is no statutory limit on duration of assistance. Families may lose assistance due to failure to comply with lease obligations, or through fraud or other criminal activity.

³ "FY 2016 HUD Income Limits Briefing Materials," see Attachment 6, Page 39; <https://www.huduser.gov/portal/datasets/il/il16/IncomeLimitsBriefingMaterial-FY16.pdf> .

5.5 *Treatment of particular groups, including disabled*

As discussed above (under, “Calculation of benefit amount”) there are different deductions for rental payments for elderly and disabled persons, youth and families with specific expenses (e.g. child care). There may also be locally-determined preferences for admissions to the three primary housing assistance programs or limited availability of targeted rental subsidies based on household characteristics (working families, youth under the age of 18 not living with parents or guardians, elderly, persons with disabilities, homeless persons).

6. Family Benefits

Program name (local name in parentheses if available)			Temporary Assistance for Needy Families (TANF)
Type of benefit			Targeted
Eligibility criteria	Age limits for children up to and including (in parentheses if student)		18 (19)
	Other conditions for receipt of benefit (including requirements for conditional cash transfers (CCT))		No
Upgrading mechanism of the benefit			...
Benefit amount	Benefit amount per child varies with (where +: positively; 0: no influence; -: negatively; --: fixed amount per family)	Age of child	0
		Number of children	-
	Earnings disregard		the first USD 200 plus 20% of any additional earnings (to determine eligibility); the first USD 200 plus 50% of an additional earnings (once eligibility established)
	Withdrawal rate		See earnings disregard
	Assets part of means test?		...

6.1 Conditions for receipt

Under the Temporary Assistance for Needy Families (TANF) States, Territories, and Indian Tribes (henceforth referred to as States) determine eligibility and benefit levels and services provided to needy families. Although States may impose various conditions on the receipt of assistance, a family must, based on Federal law, include at least one minor child or the mother must be pregnant.

6.2 Calculation of benefit amount

There are no Federal TANF rules or requirements regarding the State's calculation of benefits. Each State may establish its own benefit levels and determine its own benefit calculation.

The benefit is calculated based on the number of family members using the following amounts as a guideline in 2012 (Michigan):

- 1 person: USD 306 (*e.g.* pregnant mother expecting first child)

- 2 people: USD 403
- 3 people: USD 492
- 4 people: USD 597
- 5 people: USD 694
- 6 people: USD 828
- 7 people: USD 905

6.2.2 *Income and earnings disregards*

Except where another Federal statute specifies that certain income or other benefits should be disregarded, each State may decide which income to consider in calculating the benefit amount. There is considerable variation among the States in their treatment of earned income. In calculating the monthly benefit, Michigan disregards the first USD 200 of income earned plus 20 per cent of any additional earnings to determine initial eligibility; once eligibility has been established, it disregards the first USD 200 of income earned plus 50 per cent of any additional earnings. Across all states (as of July 2013), the fixed income disregard ranges from zero to USD 1,020 and the variable disregard from zero to 100 per cent up to the limit. In general, states with high fixed disregards tend to have smaller variable disregards and vice versa. Some states (not Michigan) impose a "family cap" on benefits. The initial benefit is based on the size of the family at the time of application, and benefits do not increase for additional children conceived after eligibility is determined.

6.3 *Tax treatment of benefit*

Family benefits are not taxable.

6.4 *Benefit duration*

Eligibility and benefits are determined monthly. Federal funding for a family with an adult receiving federally funded TANF assistance is limited to 60 months. The 60 months do not have to be consecutive, but it is a lifetime limit. States may use their own funds to provide benefits after the expiration of the 60 months or exclude families from the accumulation of months toward the federal 60-month limit. States may also create their own time limits (in addition to the federal time limit.). Many States have either shortened the time limit (for example, several States have a 24 month time limit) or limited the number of months that a family may receive benefits within a certain period of time. For example, the family may receive benefits for 24 months within a 60-month period, but there is a lifetime limit of 60 months of federally-funded assistance with up to 20 percent of the caseload exempted from the Federal time limit due to hardship.

6.5 *Treatment of particular groups, including disabled*

The TANF law includes special provisions or requirements for certain groups, such as minor parents and victims of domestic violence.

7. Childcare for pre-school children

According to the Federal Interagency Forum on Child and Family Statistics (www.childstats.gov), in 2011, 49 percent of children ages 0–4 with employed mothers were primarily cared for by a relative—their father, grandparent, sibling, other relative, or mother— while she worked. Twenty-four percent spent the most amount of time in a center-based arrangement (day care, nursery school, preschool, or Head Start). Thirteen percent were primarily cared for by a nonrelative in a home-based environment, such as a family day care provider, nanny, babysitter, or au pair.⁴

In 2012, among children age 5 and younger, not yet in kindergarten and in a weekly non-parental care arrangement, 56 percent were enrolled in center-based care. Among this same subset of children, those below poverty were less likely to be in center-based care (50 percent) compared to those at or above poverty (57 percent)⁵

7.1 Out-of-pocket childcare fees paid by parents

Fees paid by parents for full-time, formal centre-based care vary substantially. Some families may pay 100 percent of costs, while others may have fully or partially subsidized care. According to the National Center for Education Statistics, the mean hourly out-of-pocket expenses for non-parental care arrangements for children under age 5, and not yet in kindergarten, were USD 4.18/hour for relative care, USD 5.28/hour for non-relative care, and USD 6.70/hour for centre-based care in 2012.⁶ Families below 100 percent of the federal poverty line with children under the age of 5 had mean hourly out-of-pocket expenses for child care of USD 4.06 for relative care, USD 4.96/hour for non-relative care, and USD 3.53/hour for centre-based care. (Note: These estimates indicate per child expenses.)

Child care services are primarily provided through a market-based system at rates determined by market forces. Rates vary substantially based on region, state, age of child, and type of child care setting. In 2015, the average annual cost of full-time, centre-based child care in Michigan was USD 10,178 for infants and USD 8,238 for a 4-year old.⁷

Child care fees are tax deductible through the Child and Dependant Care Tax Credit (see Calculation of Benefit Amount section below). The tax credit is non-refundable, so families that do not pay taxes do not benefit from the credit. With respect to expenses for dependent care, a household is entitled to a deduction for the actual cost of the care of a dependent if the care enables a household member to accept or continue employment, or training or education that is preparatory for employment.

⁴ Federal Interagency Forum on Child and Family Statistics <http://www.childstats.gov/americaschildren/family3.asp>

⁵ U.S. Department of Education, National Center for Education Statistics, National Household Education Surveys Program <http://nces.ed.gov/nhes/>

⁶ 2012 National Household Education Survey (NHES), <http://nces.ed.gov/pubs2013/2013029rev.pdf>.

⁷ Child Care Aware of America, http://www.usa.childcareaware.org/wp-content/uploads/2016/12/CCA_High_Cost_Appendices_2016.pdf

7.2 *Child-care benefits*

The Child Care and Development Fund (CCDF) is the government child care subsidy program, which provides subsidies to low-income families who work or who attend training or education programs (or who have children in need of protective services). The subsidies offset the cost of purchasing child care, while maintaining the parental choice afforded by the market system. CCDF is a federal block grant program, providing funds directly to states, territories and tribes to operate a child care subsidy program designed to meet local needs. States have broad flexibility in determining eligibility guidelines (up to a maximum of 85% of state median income), provider payment rates, & family co-payment amounts, as well as the scope and quality of services.

On November 19, 2014, the Child Care and Development Block Grant (CCDBG) Act of 2014 was enacted into law. The law reauthorized and made expansive changes to the CCDF program. The changes are focused on improving the health and safety of children in child care, making the program more family-friendly by streamlining eligibility policies, ensuring parents and the general public have transparent information about the child care choices available to them, and improving the overall quality of early learning and afterschool programs. The changes emphasized the dual goals of promoting families' economic stability by making child care more affordable, and fostering healthy child development and school success by improving the quality of child care.

According to FY 2015 preliminary data, approximately 89% of subsidised child care services are available to eligible parents through certificates or vouchers, but at least 14 states also fund programs through contracts or grants to purchase child care slots.⁸ (Note that under certificates, as well as contracted programs, the actual payment is generally due to the provider; only a small percentage of children – 2 percent in fiscal year 2014– receive services through cash paid directly to parents). Parents may select any child care provider that satisfies applicable state and local requirements – including child care centres, family members, neighbours, family child care programs, after-school programs, and faith-based programs. Child care providers funded by CCDF must meet health and safety requirements set by states and tribes. The CCDBG Act of 2014 significantly strengthened CCDF health and safety provisions by requiring states to implement: health and safety standards in specific areas (e.g., prevention of sudden infant death syndrome (SIDS), first-aid, and CPR); pre-service/orientation and ongoing training; criminal background checks; and annual monitoring inspections.

In 2015, approximately 1.4 million children per month were served.⁹ That year, USD 5.35 billion was appropriated to CCDF. States are also required to spend a portion of CCDF for quality improvement activities such as training and professional development. The CCDBG Act of 2014 increased the amount that must be spent for quality, and established a new spending requirement specifically for improving the quality of infant and toddler care. In recent years, states have responded to the national call for improved child care quality by creating or expanding Quality Rating and Improvement Systems (QRIS), improving teacher and professional development systems, developing information technology to improve services, and by making other investments that would increase or improve child care quality for all children,

⁸ 2015. "Percent of Children Served by Payment Method", Preliminary 2015 Data. Office of Child Care, Administration for Children and Families, U.S. Department of Health and Human Services. <https://www.acf.hhs.gov/occ/resource/fy-2015-preliminary-data-table-2>.

⁹ 2015. "Average Monthly Adjusted Number of Families and Children Served", Preliminary 2015 Data. Office of Child Care, Administration for Children and Families, U.S. Department of Health and Human Services. <https://www.acf.hhs.gov/occ/resource/fy-2015-preliminary-data-table-1>

regardless of CCDF eligibility. QRIS are designed to improve quality for children in child care and other early childhood education programs through assignment of ratings, assisting programs in the development and implementation of improvement plans, and helping the public use this information to make decisions about child care.

Additionally, there are two block grant programs that provide child care funding: Temporary Assistance for Needy Families (TANF) and the Social Services Block Grant (SSBG). TANF provides cash assistance and other benefits or services to low-income families with children. States may transfer up to 30 percent of their TANF block grant to CCDF or spend TANF funds directly on child care. The SSBG program provides funding to states for many social services including child care. In FY 2015 approximately USD 12 billion of federal and related state funds were available for CCDF, TANF, and SSBG child care. Through CCDF, TANF and SSBG-funding streams, an estimated 2.1 million children were served on an average monthly basis in 2015 (the most recent year for which data are available).

The Federal government also provides funding for early childhood education through the Head Start program. The Head Start program gives grants to local public and private non-profit and for-profit agencies to promote school readiness by enhancing the social and cognitive development of children through the provision of educational, health, nutritional, social and other services to economically disadvantaged children and families. The program includes Head Start services to preschool children and Early Head Start services to infants, toddlers, and pregnant women. In fiscal year 2015, the Federal government provided USD 8.6 billion to the program. The program served approximately 1.1 million children ages birth to five and pregnant women through the 2014-15 program year.¹⁰

State-funded pre-kindergarten, or pre-K, programs are another key investment in early childhood education. In 2014-2015, 42 States and the District of Columbia funded pre-K programs for at least some of their preschool-aged children.¹¹ State spending for pre-K programs exceeded USD 5.5 billion in school year 2014-2015 and served over 1.3 million children. The national average of per-child spending on pre-K was USD 4,679 when combined with state, local, and locally allocated federal funds. Most of these programs provide at least part-day services for a subgroup of preschool children, usually those from low-income families or with other risk factors.

There are sustained efforts to ensure collaboration between the Head Start, Child Care, and Pre-k programs. For example, the Head Start Reauthorization Act of 2007 requires each state governor to designate a State Advisory Council on Early Childhood Education and Care (SAC) to develop a coordinated system of early childhood education and care. Starting in 2014-15, a significant portion of Head Start funding was used for Early Head Start-Child Care Partnership grants to allow new or existing Early Head Start programs to partner with local child care centres and family child care providers serving infants and toddlers from low-income families.

Another major source of support for child care services is the Child and Dependent Care Credit, which provides tax assistance to families who pay for child care in order to work in paid employment. In 2013, USD 3.3 billion in assistance was provided under the Child and Dependent Care Tax Credit to 6.29 million

¹⁰ The Office of Head Start Program Fact Sheet, FY 2015, <https://eclkc.ohs.acf.hhs.gov/hslc/data/factsheets/2015-hs-program-factsheet.html>.

¹¹ 2016. "The State of Pre-School 2015." Barnett, W.S, Friedman-Krauss, A.H, Gomez, R.E, Horowitz, M. Weisenfeld, G.G, Clarke Brown, K & Squires, J.H., National Institute for Early Education Research (NIEER). <http://nieer.org/state-preschool-yearbooks/the-state-of-preschool-2015>.

taxpayers.¹² Some of the states offer child and dependent care tax credits or deductions to families in addition to the federal tax credit; eligibility limits and benefit levels vary widely.

7.2.1 *Conditions for receipt*

The CCDBG Act provides each state with discretion in determining how its CCDF child care programs will operate, such as setting eligibility guidelines, provider payment rates, and family co-payments. Parents must be working, (or seeking employment), or attending job training or education, or the child must be in need of protective services. Typically a child must be under age 13, however, children with special needs may be eligible up to 19 years of age. Among the 50 States and the District of Columbia, in 2015 initial eligibility thresholds for a family of three ranged from \$838 per month in Illinois to \$5,279 per month in North Dakota. (The North Dakota limits are approximately equal to three times the Federal Poverty Guidelines for a three-person family in 2015). Michigan eligibility threshold for family of three was \$1990 per month.¹³

The CCDBG Act requires states to provide a minimum of 12 months of eligibility to children of families receiving CCDF assistance, regardless of increases in parents' earnings as long as their income remains at or below the eligibility threshold of 85 percent of state medium income (SMI). In addition the CCDBG Act also requires states to prioritize services for specific populations including: children of very low income families (considering family size), children with special needs, which may include any vulnerable populations as defined by the state, and children experiencing homelessness. States have flexibility as to how they offer priority to these populations, including by prioritizing enrollment, waiving co-payments, paying higher rates for access to higher-quality care, or using grants or contracts to reserve slots for priority populations.¹⁴

7.2.2 *Calculation of benefit amount*

CCDF and TANF child care benefits amounts are set by the state and typically vary by type of provider and other factors. For CCDF, the state must certify in its CCDF Plan that payment rates for CCDF subsidies are sufficient to ensure equal access for eligible children. Each state must also provide a summary of the facts the state used to determine that payment rates are sufficient to ensure equal access. Families receiving CCDF subsidies are required contribute to the price of care on a sliding scale (based at a minimum on family size and income), although states may waive co-payments for families at or below poverty. According to administrative data for fiscal year 2015 the weighted average monthly CCDF subsidy among the 50 States and District of Columbia was USD 420 per family.¹⁵ (The weight is in proportion to the number of families/children served by CCDF in each State). These amounts include care

¹² 2009. Department of Treasury, Internal Revenue Service. "Individual Income Tax Returns 2011." Publication 1304. [http://www.irs.gov/uac/SOI-Tax-Stats-Individual-Income-Tax>Returns-Publication-1304-\(Complete-Report\)#_pt2](http://www.irs.gov/uac/SOI-Tax-Stats-Individual-Income-Tax>Returns-Publication-1304-(Complete-Report)#_pt2)

¹³ The CCDF Policies Database Book of Tables: Key Cross-State Variations in CCDF Policies as of October 1, 2015, The Urban Institute, <https://www.acf.hhs.gov/opre/resource/ccdf-policies-database-book-tables-key-cross-state-variations-ccdf-policies-october-1-2015>.

¹⁴ Child Care and Development Fund (CCDF) Program Final Rule https://www.regulations.gov/document?D=ACF_FRDOC_0001-0069

¹⁵ 2014 Preliminary CCDF Data Tables. Office of Child Care, Administration for Children and Families, Department of Health and Human Services, <http://www.acf.hhs.gov/programs/occ/resource/ccdf-statistics>.

for children of all ages, full and part-time care, and care by relatives as well as family day care homes and child care centres. Among children receiving a CCDF subsidy in fiscal year 2015, 73 percent were in centre-based care.

Michigan's child care subsidies are based on a sliding scale related to gross monthly income and family size. The income ceiling per month for subsidy eligibility ranges from USD 1,607 for family of 2 to USD 2,367 for family of 4. Co-payments range from USD 15 to USD 40 per child per biweekly period.. Provider payment rate ceilings vary by age of child, type of care, and by locality. For centre-based care, the base rate ceiling is USD 3.75 per hour for infants and USD 3.75 per hour for toddlers.. Providers at higher quality ratings receive higher payments. Michigan waives co-payment fees for some families at or below the poverty level, specifically for families receiving TANF cash assistance and for families with children receiving protective services. Michigan pays its child care subsidies based on an hourly rate, which would be the same for full-day and part-time care. However, some states choose to base their payment rates on larger increments of time (i.e. daily). These payment rates will vary depending on whether the child was in full-time or part-time care. The amount of this variance is dependent on state policy.

The Child and Dependent Care Credit provides tax assistance to families who pay for child care in order to work in paid employment or look for work. The amount of credit is based on income, the number of dependents, and the amount of child care expenses. For example, families with adjusted gross income of less than or equal to USD 15000 are eligible to receive a child care credit of 35 percent of qualifying child care expenses. Families with higher income receive a lower credit, with the rate falling to 20 percent for individuals and couples with adjusted gross incomes above USD 43000. In 2014, qualifying child care expenses were capped at USD 3000 for one child and USD 6000 for two or more children. Thus the maximum value of the credit was USD 1050 for an individual or couple with one child and adjusted gross income below USD 15000 and USD 2100 for a low-income family with two or more children. The credit is not refundable and so families that do not pay taxes do not benefit from the credit.¹⁶

7.2.3 *Calculation of gross benefit*

See above.

7.2.4 *Income and earnings disregards*

When determining eligibility for CCDF, Supplemental Security Income (SSI) is fully counted in a little over half the states. TANF income is fully counted in a little under half of the states; it is either not counted or only counted under certain circumstances in the remainder. Most states do not count the value of energy assistance, housing assistance, the Supplemental Nutrition Assistance Program, or state earned income tax credit refunds.¹⁷

7.3 *Tax treatment of benefit and interaction with other benefits*

No states are known to treat CCDF or TANF assistance as taxable.

¹⁶ 2016. Department of Treasury, Internal Revenue Service. "Individual Income Tax Returns 2014." Publication 1304. [http://www.irs.gov/uac/SOI-Tax-Stats-Individual-Income-Tax>Returns-Publication-1304-\(Complete-Report\)#_pt2](http://www.irs.gov/uac/SOI-Tax-Stats-Individual-Income-Tax>Returns-Publication-1304-(Complete-Report)#_pt2)

¹⁷ CCDF Policies Database Book of Tables: Key Cross-State Variations in CCDF Policies as of October 1, 2014, The Urban Institute, <http://www.acf.hhs.gov/programs/opre/research/project/child-care-and-development-fund-ccdf-policies-database-2008-2013>.

7.4 *Treatment of particular groups, including disabled*

States decide whether to target certain populations for CCDF subsidies. Many states offer priority for a child care subsidy eligibility to families receiving TANF cash assistance and to families transitioning off of TANF. All states are required to give priority to families of children with special needs and families with very low incomes. Examples of other populations that are given special priority by one or more states include families with medical emergencies, parents who are students in post-secondary education, parents in homeless or spousal-abuse shelters, children in protective services or in foster care, and children in need of before and after-school care.

Reference date for all information is **July 1st 2016**

Country chapter for OECD series *Benefits and Wages* (www.oecd.org/els/social/workincentives)

8. Employment-conditional benefits

The Earned Income Tax Credit (EITC) is a refundable tax credit. Eligible for EITC are working families with children under 19 (or under 24 if full-time student, or any age if permanently or totally disabled) and childless working persons aged between 25 and 65 that meet certain income thresholds. (See section 10.1.1.)

9. Lone-parent benefits

None.

10. Tax system**10.1 Income tax schedule****10.1.1 Tax allowances and credits**

- *Basic reliefs:* In 2016 a married couple filing a joint tax return is entitled to a standard deduction of USD 12,600. The standard deduction is USD 9,300 for heads of households (unmarried or separated individuals with dependents) and USD 6,300 for single individuals. This relief is indexed for inflation. More liberal standard deductions are available for taxpayers who are age 65 or older and taxpayers who are blind. Special rules apply to children who have sufficient income to pay tax and are also claimed as dependents by their parents.

In addition to the standard deduction, in 2016 a USD 4,050 *personal exemption* is given every taxpayer (including both husband and wife filing a joint return). The personal exemption is indexed annually for inflation. In 2016, there is a phase out for personal exemptions.

Personal exemption phase out: Personal exemptions are phased out in 50 steps for taxpayers with incomes in excess of certain amounts. All of a taxpayer's exemptions are phased out simultaneously. For each USD 2 500 or fraction thereof by which income exceeds the beginning of the phase out range, personal exemptions are phased down by two percentage points.

Filing Status	Beginning of Phase out Range (USD)
Single	259 400
Joint return	311 300
Head of household	285 350

- *Standard marital status reliefs:* Married couples generally benefit from a more favourable schedule of tax rates for joint returns of spouses (see Section 10.1.3). There are no other general tax reliefs for marriage.
- *Relief for children (or EITC):* For each child and other person claimed as a dependent on a taxpayer's return, the taxpayer is entitled to a personal exemption of USD 4 050 in 2016. Low income workers with dependents are allowed a refundable (non-wastable) earned income credit. For taxpayers with one child, the credit is 34% of up to USD 9 920 of earned income in 2016. The credit phases down when income exceeds USD 18 190 (23 740 for married taxpayers) and phases out when it reaches USD 39 296 (44 846 for married taxpayers). The earned income threshold and the phase-out threshold are indexed for inflation. For taxpayers with two children, the credit is 40% of up to USD 13 930 of earned income in 2016. The credit phases down when income exceeds USD 18 190 (23 740 for married taxpayers) and phases out when it reaches USD 44 648 (50 198 for married taxpayers). For taxpayers with three or more children the credit is 45% of up to USD 13 930 of earned income. The credit phases down when income exceeds USD 18 190 (23 740 for married taxpayers) and phases out when it reaches USD 47 955 (53 505 for married taxpayers).

Since 1998, taxpayers are permitted a tax credit for each qualifying child under the age of 17. In 2016 the maximum credit is USD 1 000. The maximum credit is reduced for taxpayers with income in excess of certain thresholds. The credit is reduced by USD 50 for each USD 1 000 of

income in excess of USD 110 000 for married taxpayers (USD 75 000 for single and head of household taxpayers). These threshold amounts are not indexed for inflation. The child credit is refundable (non-wastable) to the extent of 15% of earned income in excess of USD 3 000. A taxpayer with three or more qualifying children may be allowed a supplemental refundable (non-wastable) child credit, subject to certain restrictions. The refundable credit is the excess of the taxpayer's share of social security (including Medicare) taxes over his earned income tax credit for the year not used to offset income tax liability.

- *Relief for low income workers without children (or EITC)*: In 1994 and thereafter, low income workers without children are eligible for the earned income credit. In 2016 low income workers without children are permitted a non-wastable earned income credit of 7.65% of up to USD 6 610 of earned income. The credit phases down when income exceeds USD 8 270 (13 820 for married taxpayers) and phases out when income reaches USD 14 880 (20 430 for married taxpayers). This credit is available for taxpayers at least 25 years old and under 65 years old.
- *Relief for social security and other taxes*. In 2016, the withholding rate for Social Security taxes for employees is 6.2 percent. The earned income credits described above are sometimes considered an offset to social security contributions made by eligible employees. Furthermore, only a portion of social security benefits are subject to tax.

10.1.2 The definition of taxable income

Gross income minus the above tax exemptions.

10.1.3 The tax schedule

Federal Income Tax rates

Taxable Income Bracket (USD) ¹			Marginal Tax Rate (%)
Single Individual	Joint Return of Married Couple	Head of Household	
0 to 9 275	0 to 18 550	0 to 13 250	10
9 276 to 37 650	18 551 to 75 300	13 251 to 50 400	15
37 651 to 91 150	75 301 to 151 900	50 401 to 130 150	25
91 151 to 190 150	151 901 to 231 450	131 151 to 210 800	28
190 151 to 413 350	231 451 to 413 350	210 801 to 413 350	33
413 351 to 415 050	413 351 to 466 950	413 351 to 441 000	35
415 051 and over	466 951 and over	441 001 and over	39.6

1. The taxable income brackets are indexed for inflation.

State and local income taxes

The District of Columbia and 43 of the 50 States impose some form of individual income tax.¹⁸ In addition, some local governments (cities and counties) impose an individual income tax, although this is not generally the case. State individual income tax structures are usually related to the federal tax structure by the use of similar definitions of taxable income, with some appropriate adjustments. This linkage is not

¹⁸ New Hampshire and Tennessee tax only interest and dividend income received by individuals.

a legal requirement but a practical convention that functions for the convenience of the taxpayer who must fill out both federal and State income tax returns.

The AW calculations assume that the average worker lives in Detroit, Michigan. The state of Michigan permits a personal exemption of USD 4 000 for the taxpayer and taxes income at the rate of 4.25 per cent. Michigan allows taxpayers who are eligible to claim the federal earned income tax credit to claim a Michigan earned income tax credit. The Michigan earned income tax credit is a refundable (non-wastable) credit equal to 6 percent of the federal earned income tax credit.

The city of Detroit permits a personal exemption of USD 600 and taxes income at the rate of 2.4 per cent.

10.2 Treatment of family income

Families are generally taxed in one of three ways:

- As married couples filing jointly on the combined income of both spouses;
- As married individuals filing separately and reporting actual income of each spouse; or
- As heads of households (only unmarried or separated individuals with dependents).

All others, including dependent children with sufficient income, file as single individuals.

10.3 Social security contribution schedule

10.3.1 Employees' contributions

Pensions

In 2015, the rate for employee contributions is 7.65 per cent (6.2 per cent for old age, survivors, and disability insurance, and 1.45 per cent for old age hospital insurance). The 6.2 per cent rate applies to earnings up to USD 118 500. Beginning in 1994, there is no limit on the amount of earnings subject to the 1.45 per cent rate. There is an additional 0.9 per cent tax on employee wages and salaries that exceed USD 200 000 (USD 250 000 for joint returns) as the additional hospital insurance tax on high-income taxpayers. The additional tax on wages and salaries is subject to withholding (but without regard to the earnings of the spouse) when wages from a particular job exceed USD 200 000 per year. These thresholds are not indexed for inflation.

There is no distinction by marital status or sex.

10.3.2 Employers' contributions

Pensions

The rate for employers' contributions is 6.2 per cent on earnings up to USD 118,500 and 1.45 per cent of all earnings (without limit).

Unemployment

Employers are required by the federal government to pay an unemployment tax on employee earnings up to USD 7,000. The rate of this tax is 6.0 percent. The model considers that the Federal government allows employers to receive an offset credit for state unemployment taxes of up to 5.4 percent resulting in a net Federal tax of 0.6 percent on earnings up to USD 7,000. Taxes are also paid to various state-sponsored unemployment plans which may generally be credited against the required federal percentage. In 2016 the average unemployment insurance tax rate in Michigan was 3.58 percent of the first USD 9,000 of wages.

11. Part-time work

11.1 *Special benefit rules for part-time work*

The unemployment benefit is calculated for qualifying part-time workers the same as it is for full-time workers.

11.2 *Special tax and social security contribution rules for part-time work*

Workers, including part-time workers, only qualify for unemployment insurance if they are seeking a full-time job. There are no specific rules for part-time workers to be eligible for the Earned Income Tax Credit (section 8).

12. Policy developments

12.1 Policy changes introduced from 2 July 2015 – 1 July 2016

On November 19, 2014, President Obama signed the Child Care and Development Block Grant (CCDBG) Act of 2014 into law. The law (Pub. L. 113-186) reauthorizes the Child Care and Development Fund (CCDF) program for the first time since 1996, and represents an historic re-envisioning of the child care program. It makes expansive changes focused on improving the health and safety of children in child care, making the program more family-friendly by streamlining eligibility policies, ensuring parents and the general public have transparent information about the child care choices available to them, and improving the overall quality of early learning and afterschool programs. Among other changes, the law includes the following reforms for child care funded with CCDF dollars:

- Comprehensive criminal background checks of child care staff;
- Health and safety requirements and training;
- Regular on-site monitoring of child care providers;
- Posting compliance information electronically, along with other consumer education information;
- Progression of professional development and training for child care providers;
- Increased spending to improve the quality of child care; and
- 12 month periods between eligibility redeterminations for families

In 2016 there were no structural changes. Policy parameters were revised for the following policies:

- Unemployment insurance: the minimum required salary increased; the reduction of the benefit (as earnings increase) became sharper.
- SNAP: income limits and standard deductions were revised.
- Income tax, EICT: parameters updated.

12.2 Policy changes announced since 1 July 2016